

1.

CASE #	CASE NAME	HEARING NAME
CVRI2405269	TRAN VS PACIFIC SPECIALTY INSURANCE COMPANY	MOTION FOR SUMMARY JUDGMENT OR IN THE ALTERNATIVE SUMMARY ADJUDICATION

Tentative Ruling: Off-Calendar 6/30/26

2.

CASE #	CASE NAME	HEARING NAME
CVRI2600821	HAMLIN VS HYUNDAI MOTOR AMERICA	MOTION TO COMPEL ARBITRATION

Tentative Ruling: GRANT. NO OPPOSITION HAS BEEN FILED.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2601394	SAGARAL VS HYUNDAI MOTOR AMERICA	MOTION TO COMPEL ARBITRATION

Tentative Ruling: DENIED

PROOF OF SERVICE: Proper

This is a lemon law case. On July 13, 2023, Plaintiffs William and Linda Sagaral ("Plaintiffs") leased a 2023 Hyundai Ioniq 6 ("Subject Vehicle"), which was manufactured and/or distributed by Defendant Hyundai Motor American ("Defendant" or "HMA"). Plaintiffs allege that HMA failed to conform the Subject Vehicle to the express written warranties within a reasonable number of repair attempts. HMA refused to repurchase the Subject Vehicle in violation of the Song Beverly Consumer Warranty Act ("Song Beverly Act.")

On March 6, 2026, Plaintiff filed his Complaint. She asserts three causes of action for: (1) Violation of the Song Beverly Consumer Warranty Act—Breach of Express Warranty; (2) Violation of the Song Beverly Consumer Warranty Act—Breach of Implied Warranty; and (3) Violation of Bus. & Prof. Code § 17200+.

Defendant now moves to compel arbitration pursuant to an arbitration agreement ("Arbitration Agreement") included in the Owner's Handbook and Warranty Information ("Warranty" or "Warranty Handbook") and an arbitration agreement provided when Plaintiffs enrolled in HMA's Bluelink services. Defendant argues that the FAA applies to the Arbitration Agreement. Defendant argues that the Agreement is enforceable and applies to all of Plaintiffs' claims. Defendant argues that the doctrine of equitable estoppel applies because all of Plaintiffs' claims rely on the Warranty containing the Arbitration Agreement. Defendant argues that the Arbitration Agreement is not unconscionable. Defendant argues that Plaintiffs agreed to the terms and conditions of